

**JUSTIFICATION REVIEW DOCUMENT
FOR LIMITED SOURCE JUSTIFICATION**

Supply/Service: Push-To-Talk (PTT) First Responder Network (FirstNet) Equipment and Services

Authority: Federal Acquisition Regulation (FAR) 8.405-6(a)(1)(i)(B)

Prepared by: Brittany Turner
Contract Specialist
Email: brittany.a.turner32.civ@army.mil PN: (520) 693-0047

Contracting Officer: Ward N. Robinson
Contracting Officer
Email: ward.n.robinson.civ@army.mil PN: (520) 693-1338

Reviews: I have reviewed this justification and find it adequate to support limiting competition.

Controlled by: Army
Controlled by: ACCRI-TDG
CUI Category: SSEL
Distribution Statement or LDC: B
POC: ward.n.robinson.civ@army.mil

**Department of the Army
Limited Source Justification
Order under
General Services Administration
Multiple Award Schedules**

1. Contracting Activity: U.S. Army Contracting Command – Rock Island (ACC-RI), Rock Island Arsenal, Rock Island, IL 61299-8000.

2. Description of Action: The United States Military Academy (USMA) at West Point requests a firm-fixed-price task order (TO) under General Services Administration (GSA) with AT&T Mobility, LLC. This acquisition is conducted under the authority of the Multiple Award Schedules Program. ACC-RI will execute this action against Federal Supply Schedule contract 47QTCA19D00MV. ACC-RI projects award for [REDACTED] and fiscal year [REDACTED]. Other Procurement, Army funds will be used. An acquisition plan is not required because this procurement does not meet the threshold at Defense Federal Acquisition Regulation Supplement 207.103(d)(i)(B).

The Government did not compete the requirement prior to this action, under the authority of Federal Acquisition Regulation (FAR) 8.405-6(a)(1)(i)(B), as supported by Limited Source Justification (LSJ) 24-063. That justification's paragraph 7, Actions to Increase Competition stated: "The Government will work to increase competition for follow-on requirements by conducting market research to determine whether the marketplace has changed that will allow for competition." The Government completed those actions by conducting market research in December 2024 to see if market conditions changed since the last procurement, which is further discussed in paragraph 8 below.

3. Description of Supplies/Services: USMA has a need for the First Responder Network (FirstNet) Rapid Response Standard Service for a quantity of [REDACTED] Push-To-Talk (PTT) phones, to include helpdesk support and on-site depot support, which is a monthly subscription fee per device. Additionally, due to signal issues with the PTT phones during field operations in [REDACTED], USMA has a need for a compact rapid deployable (CRD) system and miniCRD system with the monthly service for the devices. The CRD and miniCRD are small, portable cell sites that will be deployed to

[REDACTED]

The following supplies and services will be acquired under this purchase:

[REDACTED]

NOTE: The equipment is a one-time cost and is minimal in terms of the services being provided.

4. Authority Cited: FAR 8.405-6(a)(1)(i)(B). Only one source is capable of providing the supplies or services required at the level of quality required because the supplies or services are unique or highly specialized.

5. Reason for Authority Cited: USMA first procured FirstNet devices and services in [REDACTED] GSA under order W519TC-23-F-2606 with AT&T, as the service met the Academy's specific needs for a reliable and secure communication network to support cadet field training operations. [REDACTED]

[REDACTED]

[REDACTED]

FirstNet is unique in that it utilizes Band 14 spectrum, which is a nationwide public safety wireless broadband network that provides unlimited data, priority, and network preemption to eligible users. The Federal Communications Commission issued this spectrum license only to FirstNet for use with the congressionally mandated program. No other broadband carrier has access or approval to utilize this spectrum. [REDACTED]

[REDACTED]

[REDACTED]

As annotated in paragraph 6 below, USMA must continue to procure FirstNet through AT&T as there are no other services compatible with the already procured PTT devices. If USMA were to switch out the PTT FirstNet devices, it would require an additional estimated cost of [REDACTED], which would not be in the Government's best interest.

[REDACTED]

secure communications between leadership, squads and operations, realistic military field training would be non-existent.

6. Market Research: USMA conducted market research initially in April 2024 and again in December 2024 through SorceForge, which is an industry market research tool to review industry wide evaluations of similar type or products to determine adaptability and integration. During the market research in April 2024, industry experts provided [REDACTED] services that could be reviewed against AT&T FirstNet. The [REDACTED] services were [REDACTED]; however, it was determined these two services did not meet the needs of USMA. USMA reaffirmed in December 2024 that these [REDACTED] services still do not offer the specific requirements needed for USMA because they aren't compatible with the already procured PTT devices and didn't provide help-desk support or on-site depot services. Additionally, [REDACTED] only provide two-way communication instead of [REDACTED] by USMA. Furthermore, USMA reaffirmed from AT&T on 31 October 2024 that the FirstNet services are not available from any other supplier or reseller.

USMA also searched government databases in October 2024, to include GSA and Computer Hardware Enterprise Software Solutions (CHESS), and reaffirmed FirstNet is only available through AT&T's GSA contract 47QTCA19D00MV. A Statement of Non-Availability was received on 31 October 2024 which serves as documentation that FirstNet is unavailable through CHESS.

Based on the above, any requirement to utilize FirstNet must be procured through AT&T. Since FirstNet is the only service that meets USMA's needs and is compatible with the already procured PTT devices, AT&T is the only contractor capable of providing this requirement to the USMA.

7. Actions to Increase Competition: The Government will work to increase competition for follow-on requirements by conducting market research to determine whether the marketplace has changed that will allow for competition and if the requirements could be fulfilled without use of the brand name restriction.

8. Other Facts:

Procurement History

Contract Number: W519TC-24-F-2601

Contractor: AT&T Mobility, LLC.

Award Date: 09/29/2024

Competitive Status: Sole Source, LSJ 24-063

Authority: FAR 8.405-6(a)(1)(i)(B)

W519TC-24-F-2601 was awarded with a base and five option periods for a total PoP of five years; however, USMA made the decision to not exercise option period 1 due to funding issues and the need for additional equipment and services. As such, USMA's FirstNet services ceased 29 December 2024.

Contract Number: W519TC-23-F-2606

Contractor: AT&T Mobility, LLC.

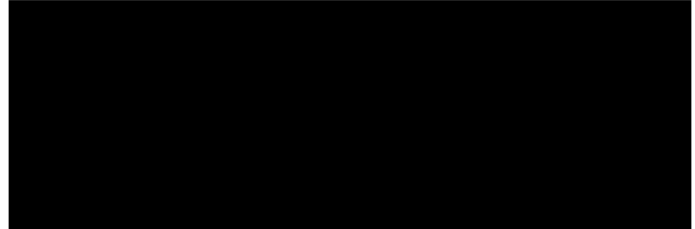
Award Date: 09/29/2023

Competitive Status: Sole Source, approved by contracting officer

Authority: FAR 8.405-6(a)(1)(i)(B)

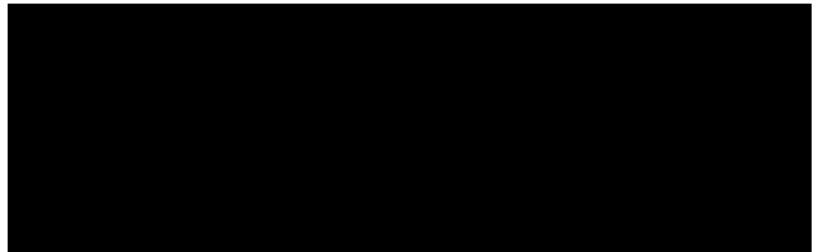
9. Technical Certification: I certify that the supporting data under my cognizance which are included in the justification are accurate and complete to the best of my knowledge and belief.

Date: 26 FEB 2025



10. Requirements Certification: I certify that the supporting data under my cognizance which are included in the justification are accurate and complete to the best of my knowledge and belief.

Date: 25 FEB 2025



11. Best Value Determination: I hereby determine that the order represents the best value to the Government IAW FAR 8.405-6(c)(2)(v).

Date: 26 FEB 2025

ROBINSON.WARD.148551975
NICHOLAS.1148551975
Digitally signed by ROBINSON.WARD.NICHOLAS.148551975
Date: 2025.02.26 08:04:07 -06'00'

Ward N. Robinson
Contracting Officer

12. Contracting Officer Certification: I certify that this justification is accurate and complete to the best of my knowledge and belief.

Date: 26 FEB 2025

ROBINSON.WARD.148551975
NICHOLAS.1148551975
Digitally signed by ROBINSON.WARD.NICHOLAS.148551975
Date: 2025.02.26 08:04:23 -06'00'

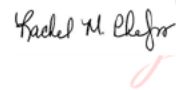
Ward Nicholas Robinson
Contracting Officer

Approval

Based on the foregoing justification, I hereby approve the procurement of PTT FirstNet equipment and services under GSA Multiple Award Schedules on a limited source basis pursuant to the authority of FAR 8.405-6(a)(1)(i)(B) subject to availability of funds, and provided that the services or supplies herein described have otherwise been authorized for acquisition.

Date:

Signature:



Digitally signed by
PHELPS.RACHEL.M.12
58319865
Date: 2025.02.28
07:18:51 -06'00'

RACHEL M. PHELPS
Competition Advocate